



Microsoft Research &
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www.microsoft.com/africa

Private and Confidential

This agreement is made on 01st November 2021

BETWEEN:

- (1) **Microsoft Research & Development Kenya Limited**, a limited liability company incorporated in Kenya with Registration Number PVT-5JU95AG (the “**Company**” or “**Microsoft**” which expression shall, where the context so admits, include its successors and assigns); and

AND

- (2) Charles Kabui

hereinafter collectively referred to as the “**Parties**” or individually as “**Party**”.

WHEREAS:

(A) The Company wishes to offer you employment on the following terms and conditions.

(B) This agreement, constitutes the contract between you and Microsoft (the “**Contract**”) and sets out the principal terms and conditions applying to your employment with Microsoft, which are correct as at the date of issuance of this Contract and which will apply from the Commencement Date (unless you are notified otherwise). By signing the duplicate copy of this Contract, you confirm your agreement to the terms set out in it.

Position: Software Engineer

Level: 60

Location: Nairobi, Kenya

Commencement Date: As specified at the end of this document, subject to agreement by Microsoft.

Term: The duration of this contract shall be unlimited unless terminated under Part D below.

You will report to Elizabeth Gikebe, Software Engineering Manager

Pursuant to Section 10(2) of the Kenyan Employment Act, your personal particulars are set out in the Second Schedule.

This Contract and your employment by Microsoft are conditional upon the following:

You confirm that you have not retained any property, including any confidential information or trade secrets, belonging to any person, business entity or other organisation by whom you were employed or engaged before joining Microsoft and that you will not disclose any confidential information belonging to any such third party to Microsoft or use the intellectual property of any such third party (unless licensed to do so) in the performance of your duties for Microsoft.

The following part of this Contract is set out in five sections:

- A Compensation;*
- B Benefits;*
- C General Working Conditions;*
- D Term and Termination; and*
- E Legal Provisions*

A. COMPENSATION

1. Salary

- 1.1 Your basic salary, inclusive of housing allowance, is KES 4,892,500 per annum.
- 1.2 Your basic salary will be paid in 12 equal monthly instalments on or about the 25th day of each month.
- 1.3 Your salary will be paid in Kenya Shillings by direct bank transfer to your designated bank account as notified to the Company or in such manner as may otherwise be agreed between the Company and you in writing.
- 1.4 Tax Liability and Statutory Deductions: Your remuneration shall be subject to the usual taxes and statutory deductions such as Pay as You Earn (PAYE), National Social Security Fund (NSSF) and National Health Insurance Fund (NHIF). However, payment of any tax on your remuneration shall, unless otherwise required by law, be your sole responsibility. All fiscal income and other taxes levied on you in respect of your remuneration from the Company or otherwise are your personal liabilities and are to be paid by you unless otherwise required by law.
- 1.5 Your first performance review will be **September 2022**. Any subsequent performance reviews will occur in or around September each year according to the performance review timetable in place for Microsoft employees at that time. Any basic salary increase will be at the discretion of Microsoft. In order to be eligible for a basic salary review in any year you must have been continuously employed by Microsoft since 31 March of that calendar year.

- 1.6 Microsoft is entitled to deduct from your salary or any other payment due to you from Microsoft, any sums which are deductible by law and/ or which are properly due from you to Microsoft and/ or any Microsoft Group Company. Such sums include, but are not limited to, repayment of any loans or advances (including advances on expenses, housing allowances, education allowance, bonus payments), repayment of any overpaid holiday pay, salary or benefits, any personal or other debt outstanding on any credit cards (personal or otherwise) where Microsoft will or may be charged for any outstanding debt not discharged by you (including any Corporate card which may be issued to you), the cost of repairing or replacing the property of any Microsoft Group Company which has been lost or damaged by you or as a result of your negligence (and the cost of recovering the same) and any monies due to Microsoft.

2. Discretionary Bonus

2.1 INCENTIVE PLAN – C1

You will also be eligible for an annual bonus, ranging from zero to a maximum of 20% of your bonus eligible salary during the rewards period based on your performance. Your first eligibility for a bonus will be determined based on your start date and will be reviewed each year per Microsoft eligibility rules.

- 2.2 You shall, subject to the rules of the scheme from time to time in force and at Microsoft's absolute discretion, be entitled to participate in the non-contractual annual bonus scheme / sales incentive plan as set out in clause 2.1 above provided that you meet the necessary eligibility requirements. The adoption of any such annual bonus scheme / sales incentive plan, the eligibility and measurement criteria and all other terms shall be at the sole discretion of Microsoft and the scheme may be varied, replaced and/ or withdrawn with or without replacement, with or without notice. Microsoft reviews the compensation structure on an annual basis and may revise its terms as a result of any such review or withdraw or replace the scheme / plan.

- 2.3 No award under this clause shall give rise to any entitlement or expectation of a bonus or be an indication of the level of any bonus which may be made in the future.

- 2.4 Where such bonuses, if any, are paid, they will not form part of the total annual compensation, whether for calculation of end of service gratuity or otherwise.

- 2.5 No bonus is to be awarded or paid to you if, on the date that any bonus is granted, notified or to be paid by Microsoft, you are no longer employed by Microsoft or are under notice of termination for any reason.

B. BENEFITS

At Microsoft's absolute discretion and subject to the rules of each benefit scheme (as may be in force from time to time), you will be entitled to participate in the benefit schemes set out below. Save for the statutory benefits, Microsoft may, with your consent, withdraw any of the benefits with or without replacement or compensation.

1. Car Allowance
2. Fuel Allowance
3. Mobile Allowance
4. Internet Allowance
5. Fitness Benefit
6. Medical Insurance

7. **Life Insurance**
8. **Employee Stock Purchase Plan**
9. **Annual Stock Award**
10. **Pension**

The information provided above on the core benefits is intended to be for guidance only, as at the date of execution of the Contract and the terms of the benefits on offer may be subject to amendment from time to time at Microsoft's discretion. Allowances will be prorated as applicable. Full details of each benefit are available on HRWeb.

1. **Car Allowance**

You will receive a car allowance of KES 840,000 per year, will be paid in 12 equal monthly instalments via payroll.

2. **Fuel Allowance**

You will be eligible for a fuel limit of KES 39,000 every month via a fuel card that will be assigned to you. The fuel card should be used for your personal fuel and lubricants only and will be topped up to the prescribed limit every month.

3. **Mobile Allowance**

You will receive a Mobile allowance of KES 342,852 per year which will be paid in equal monthly instalments via payroll.

4. **Internet Allowance**

You will receive an internet allowance of KES 154,284 per year which will be paid in equal monthly instalments via payroll.

5. **Fitness Benefit**

You are eligible for a Fitness Benefit that is refreshed every year. Please refer to details of this policy on HRWeb.

6. **Medical Insurance**

6.1 During your assignment, you and your immediate family (your spouse and up to four (4) children under 18 years of age, provided those family members are residing in Kenya with you) will be entitled to participate in Microsoft's standard health plan, subject to:

- (a) the terms of that scheme, as amended from time to time;
- (b) the rules or insurance policy of the relevant insurance provider, as amended from time to time; and

- (c) you and your family satisfying the normal underwriting requirements of the relevant insurance provider and the premium being at a rate which Microsoft considers reasonable.

6.2 Subject to any minimum requirements of medical insurance required by law:

- (a) if the insurance provider refuses for any reason to provide private medical insurance benefit to you or to your family, Microsoft shall not be liable to provide any replacement benefit of the same or similar kind or to pay any compensation in lieu of such benefit; and
- (b) Microsoft in its sole and absolute discretion reserves the right to discontinue, vary or amend the scheme (including the level of the cover) at any time on reasonable notice to you.

7. Life Insurance

During your assignment, you will be entitled to participate in the Group life insurance policy (providing 36 months of basic salary as cover) subject to: (i) the terms of that scheme, as amended from time to time; (ii) the rules or insurance policy of the relevant insurance provider, as amended from time to time; and (iii) you satisfying the normal underwriting requirements of the relevant insurance provider and the premium being at a rate which Microsoft considers reasonable.

8. Employee Share Purchase Plan

You will, at Microsoft's absolute discretion, be eligible to participate in the Microsoft Corporation Employee Share Purchase Plan ("ESPP"), subject to the rules of the ESPP from time to time in force. Full details of the ESPP are available on HRWeb under the heading "ESPP".

9. Annual Stock Award

- 9.1 You may be eligible to be considered for Annual Stock Awards made in or around September each year, at Microsoft's absolute discretion. Under the current rules of the Stock Plan (as defined above), you will not be considered unless you are employed on 31st March in the calendar year of the Annual Stock Award and remain in continuous employment with Microsoft until September of that year. These requirements may be revised or reviewed at the absolute discretion of those responsible for administering the Stock Plan.
- 9.2 Annual Stock Awards and your participation in the Stock Plan are not a term of your employment and do not form part of your compensation for your employment. In participating in the Stock Plan and by accepting any stock awards you expressly agree that your participation in the Stock Plan is not contractual and does not form part of your employment rights. You further acknowledge and agree that on the termination of your employment, for whatever reason, you will have no employment rights in respect of your participation in the Stock Plan other than in accordance with the rules of the Stock Plan that apply to you or your Stock Award Agreement.

10. Pension

Microsoft provides a supplementary defined contribution retirement benefit. There are 2 categories of matched contribution – 3% or 5%. Microsoft will match your contributions equally, up to 5% of your total monthly gross salary then remit to the appointed fund manager. Further details are available on the member booklet and HRWeb.

If any benefits provider under this Section B refuses for any reason to provide any benefit or benefits to you or is only prepared to provide the benefit or benefits on terms considered by Microsoft to be onerous, Microsoft shall not be liable to fund or provide the benefit or benefits, or to pay you any compensation or provide you with any other benefit in lieu. Your entitlement to any benefits is strictly subject to acceptance by the relevant benefit provider and the rules imposed by the relevant benefit provider, and any core benefits are provided on the condition that Microsoft considers the funding and provision of them to be reasonable. Microsoft will not pay for your participation in any core benefits where in Microsoft's view the cost of doing so would be unreasonable or disproportionate to the benefit received.

C. GENERAL WORKING CONDITIONS

1. Continuous Employment

- 1.1 Your period of continuous employment for statutory purposes shall commence on the Commencement Date and no previous employment will count as part of your continuous period of employment.

2. Place of Work

- 2.1 Your principal place of employment will be at Microsoft's premises in Nairobi. However, Microsoft may require you to carry out your duties on a temporary or permanent basis from other locations within or outside Nairobi where Microsoft deems it necessary to enable it to meet the demands of the business or to enable you to carry out your duties properly. Microsoft reserves the right to change your principal place of work permanently to any other location within a radius of 80 kms of the premises set out above by giving reasonable prior notice to you. You will be required to travel to and work on a temporary basis from any location within Kenya or abroad if reasonably necessary for the performance of your duties.

3. Hours of Work

- 3.1 Your working hours are 40 hours per week, over a 5-day week. Microsoft's normal hours of business are from 8:30am to 5:30pm Monday to Friday (inclusive of a one-hour lunch break at the convenience of the Company). You may be required to work additional hours as Microsoft considers necessary (whether or not at the specific request of Microsoft) for the proper performance of your duties and / or in order to meet the requirements of the business.
- 3.2 You must obtain the prior approval of your immediate supervisor for any unplanned absence from work and inform him/her as soon as possible of the reasons and probable duration of any unexpected and unavoidable absence from work otherwise such absences shall be treated as leave and may attract disciplinary action if the foregoing procedure is not complied with.

4. Role, Employment Outside Microsoft

- 4.1 Your job description is set out in the First Schedule attached this Contract. You will carry out the duties required for your role and any additional duties that in Microsoft's opinion are appropriate for your skills, position and experience and that may be assigned to you from time to time.
- 4.2 By signing this Contract, you confirm that you do not currently undertake any other work for any other employer. You agree to obtain the consent of Microsoft before either undertaking work for any other employer or undertaking any activity or becoming involved in any way with a

business or activity that may impact your ability to devote your full time and attention during normal working hours to the performance of your duties. You agree to comply with any policies and procedures which Microsoft may have or introduce with regard to work and activities outside Microsoft.

5. Holiday

- 5.1 Microsoft's holiday year runs from 1 January to 31 December.
- 5.2 In addition to the public and statutory holidays in Kenya, you are entitled to core holiday of 25 working days' paid holiday in each holiday year. This will be pro-rated for the first and last years of employment.
- 5.3 A maximum of 10 working days' accrued but untaken holiday entitlement may be carried forward from one holiday year to the next and can be utilized till end of December of the following calendar year
- 5.4 You will not be entitled to any payment in lieu of holidays except where your employment terminates, whereupon payment will be calculated on the basis of your basic salary per day of accrued but untaken holiday.
- 5.5 If, on termination of your employment, you have taken in excess of your pro rata holiday entitlement, Microsoft shall be entitled to reimbursement and such sums shall be calculated on the basis of your basic salary per additional day taken over and above your pro rata holiday entitlement, and may, at Microsoft's discretion, be deducted from your final salary payment or other remuneration.
- 5.6 Holidays must be approved in advance and you will need to make your request using the MS Vacation Tracking Tool.

6. Sickness Absence

- 6.1 a maximum of Thirty (30) days' sick leave with full pay, and thereafter to a maximum of Fifteen (15) days' sick leave with half pay, in each period of Twelve (12) consecutive months of service PROVIDED that you produce a certificate of Incapacity to work signed by a duly qualified medical practitioner or a person acting on such practitioner's behalf in charge of a dispensary or medical aid centre approved in writing by the Company and covering each day of absence. Sick leave may not be accumulated and will lapse if not taken within any period of Twelve (12) months. Upon termination of employment for any reason whatsoever, any unused sick leave days will not be paid for.
- 6.2 Details of the notification procedure for absence due to sickness and details of Sick Pay entitlement are available in the Sick Leave Policy. Save where stated otherwise, this Policy does not form part of your terms and conditions of employment.

7. Standards of Business Conduct and Performance and Monitoring

Microsoft's company guidelines and performance standards are set out in the Employee Handbook on HRWeb. Microsoft's Standards of Business Conduct are set out in MSWorld. Additional rules and standards with which you are expected to comply may be set out in Microsoft policy or procedure documents issued from time to time and set out in the Employee Handbook or otherwise made known to you by your manager.

D. TERM, TERMINATION AND CONSEQUENCES OF TERMINATION

1. Termination of Employment and Notice Period

2. If this assignment is terminated by you or Microsoft at any time, a minimum of Two months' written notice must be given by either party, or a payment/forfeiture of Two months' salary in lieu of notice by either party.
- 2.1 Nothing in this Contract shall prevent Microsoft from terminating your employment without notice or salary in lieu of notice and end of service gratuity (where applicable) in the event that Microsoft has reasonable grounds to believe you are guilty of gross misconduct, gross negligence or in material breach of any or all of your terms of employment, or in other appropriate circumstances.
- 2.2 If either Microsoft or you serve notice, for any reason, to terminate your employment or at any time during your notice period, Microsoft may elect to terminate your employment with immediate effect by notifying you in writing that your employment is being terminated and undertaking to pay to you in lieu of notice.

3. Garden Leave and Suspension

- 3.1 If either Microsoft or you serve notice for any reason to terminate your employment, Microsoft may for all or part of the duration of the notice period, in its absolute discretion, require you to take "Garden Leave". "Garden Leave" means that Microsoft may do any or all of the following:
 - (a) require you to perform only such duties as it may allocate to you (and, in that regard, it may choose not to allocate any duties to you at all);
 - (b) require you not to have any contact with clients, customers, suppliers and/or partners of Microsoft and/ or any Microsoft Group Company, except with Microsoft's express consent;
 - (c) require you not to have any contact with employees or contractors working for or with Microsoft or any Microsoft Group Company, except with Microsoft's express consent;
 - (d) require you to disclose to Microsoft any attempted contact with you (other than social contact) made by any client, employee, contractor, customer, partner or supplier with whom you have been required to have no contact pursuant to clause 2.1 (b) and (c) of Section D;
 - (e) prohibit you from taking any or all holiday during your notice period, even where the holiday had been authorised previously and booked, and require you to work out your notice period and receive a payment in lieu of accrued but untaken holidays; and/ or
 - (f) exclude you from the premises of Microsoft and any Microsoft Group Company and/ or require you not to visit the premises of Microsoft's or any Microsoft Group Company's clients, customers, suppliers and/or partners.
- 3.2 If Microsoft requires you to take Garden Leave, subject to the other provisions of this Contract, your basic salary and contractual benefits shall continue to accrue and be paid throughout any part of the notice period during which you have been placed on Garden Leave.

- 3.3 You acknowledge that Microsoft may require you to take Garden Leave and that such a requirement shall not constitute a breach of your contract of employment or the terms of this Contract and you will not have a right to bring any claim against Microsoft arising out of Microsoft's decision to place you on Garden Leave.
- 3.4 During any period of any Garden Leave imposed by Microsoft, and during any period of notice, you shall be under a duty of utmost good faith to Microsoft and must not work on your own behalf or on behalf of any third party in any capacity (including any voluntary capacity) without the prior written consent of Microsoft. During any period of Garden Leave, you will be required to remain readily contactable and available to work for Microsoft or any Microsoft Group Company during your normal hours of work as detailed in clause 3 of Section C above. If you fail to be available to work at any time having been requested by Microsoft to be available, your right to salary and contractual benefits in respect of such period of non-availability shall be forfeited, notwithstanding any other provision of this Contract.
- 3.5 Microsoft may suspend you from the performance of any or all of your duties and direct you not attend at the offices of Microsoft or any Microsoft Group Company at any time in connection with any investigation into any alleged misconduct or neglect by you for any period not exceeding fourteen days ("**Suspension**") or longer pending the outcome of criminal proceedings in connection with your employment (the "**Criminal Proceedings Suspension**").
- 3.6 During any period of Suspension, Microsoft shall be under no obligation to provide any work to, or vest any powers in you, and you shall have no right to perform any services for Microsoft or any Microsoft Group Company.
- 3.7 During any period of Suspension you shall:
- (a) continue to receive your salary and all contractual benefits in the usual way and subject to the terms of any benefit arrangement (save for the Criminal Proceedings Suspension);
 - (b) remain an employee of Microsoft and bound by the terms of this Contract;
 - (c) not, without the prior written consent of Microsoft attend your place of work or any other premises of Microsoft or any Microsoft Group Company;
 - (d) not, without the prior written consent of Microsoft, contact or deal with (or attempt to contact or deal with) any officer, employee, consultant, client, customer, supplier, agent, distributor, shareholder, adviser or other business contact of Microsoft or any Microsoft Group Company; and
 - (e) (except during any periods taken as annual leave agreed with Microsoft in the usual way) ensure that Microsoft knows where you will be and how you can be contacted during each working day and shall comply with any written requests to contact a specified employee of Microsoft at specified intervals.
4. **Confidentiality Obligations Following Termination**
- 4.1 The confidentiality obligations that apply during the period of your employment with Microsoft, set out in Section E, shall continue to apply following termination of your employment.

5. **Return of Company Property**

- 5.1 On termination of your employment, you must immediately return to Microsoft in accordance with its instructions all property (including pass cards, credit cards, computer equipment and peripherals, software and documents) belonging to Microsoft and/ or any Microsoft Group Company and/or any partners, customers and/or clients which are in your possession or under your control. You shall not be permitted to retain or allow any third party to retain on your behalf any copies or extracts of any of the items referred to above in any medium or form. You must, if required by Microsoft, confirm in writing that you have complied with your obligations under this clause.

6. **Non-solicitation of employees**

- 6.1 For a period of six (6) months immediately following the cessation of employment with Microsoft, you agree not to solicit or encourage any Microsoft Customer with whom you had material business dealings during the last twelve (12) months of your employment with Microsoft, with a view toward persuading such customer:

- (a) to cease doing business or lessen business dealings with Microsoft, or;
- (b) to do business with another business entity that is competitive with Microsoft.

- 6.2 For the period of six (6) months immediately following the termination of your employment with Microsoft, you agree that you will not, on your own behalf or together with or on behalf of any other person, company, business entity or other organisation, directly or indirectly:-

- (a) solicit, induce, procure or entice; or
- (b) seek to solicit, induce, procure or entice

- 6.3 To leave the employment of Microsoft or any Microsoft Group Company any person who was as at the date of termination of your employment:

- (a) employed by Microsoft or any Microsoft Group Company in the role of or having the title of "Director"; and/ or
- (b) a direct report of yours; and/ or
- (c) an employee listed on Microsoft's "HiPo", "Bench" or "Expo" lists; and/ or
- (d) an employee hired through the Microsoft graduate program; and/ or
- (e) an employee who is a level 60 or higher,

and in each case being an employee with whom you dealt during the course of your duties.

- 6.4 You agree that the duration, extent and application of the restriction is reasonable and is no greater than necessary for the protection of the goodwill, trade secrets and trade connections of Microsoft and any Microsoft Group Company. If the restriction in this clause is found to be void, but would be valid if part of it were deleted, the restriction shall apply with that part of that wording deleted.

7. Consequences of breach

- 7.1 In the event that you breach any of the restrictive covenants in this Contract, the Parties agree that you shall be liable to pay Microsoft a sum equivalent to your monthly remuneration (i.e. basic salary together with cash allowances) for each month or part of a month that you are in breach of this Contract as compensation for the damages that will be incurred by Microsoft as a result of the breach.
- 7.2 Microsoft reserves the right to claim further compensation in the event that the damages incurred are greater than the compensation provided by you under clause 6.1 of this Section D. In addition, and subject to the laws applicable in Kenya, Microsoft reserves the right to claim any non-compensatory relief including but not limited to injunctive relief.

8. Other Post Termination Restrictions

- 8.1 Without the written prior consent of Microsoft and whether alone or with others, directly or indirectly for your own benefit or the benefit of any person or organisation, you shall not during your employment or for a period of six (6) months after its termination:
- (a) in competition with the Restricted Business, seek to procure orders from, deal or carry on business with, or transact business with, any client or counterparty of Microsoft or any Microsoft Group Company (whether a company or an individual) with which or whom you have had material and/or regular dealings in the course of your duties or, where this provision would apply after your employment ends, any time during the twelve (12) months prior to its termination; and
 - (b) engage the services of, render services to or become interested in (as owner, stockholder, partner, lender or other investor, director, officer, employee, consultant or otherwise) any business activity that is in competition with the Restricted Business.
- 8.2 “**Restricted Business**” shall mean the business or any part of the business and which in either or both case(s):
- (a) is carried on by Microsoft or any Microsoft Group Company at the date of termination of your employment; or
 - (b) was carried on by Microsoft or any Microsoft Group Company at any time during your employment or, where the relevant provision would apply after your employment ends, any time during the twelve months immediately preceding the date of its termination; or
 - (c) is to your knowledge to be carried on by Microsoft or any Microsoft Group Company at any time during the twelve (12) months immediately following the date of termination of your employment; and
 - (d) which you were materially concerned with/worked for or had management responsibility for (or had substantial confidential information regarding) in either case at any time during your employment or, where the relevant provision would apply after your employment ends, any time during the period of twelve (12) months immediately prior to the date of its termination.

8.3 You acknowledge that:

- (a) the restrictions set out above are reasonable and necessary for the protection of the legitimate interests of Microsoft or any Microsoft Group Company and that, having regard to those interests, these restrictions do not work unreasonably on you;
- (b) the restrictions shall apply in relation to all clients and counterparties in respect of whom they are expressed to apply notwithstanding that such clients and counterparties may have been introduced to Microsoft or any Microsoft Group Company by you (or any person under your control) before or during your employment with Microsoft or any Microsoft Group Company; and
- (c) any and all of your relationships from time to time with clients of Microsoft or any Microsoft Group Company are the property of Microsoft or any Microsoft Group Company.

8.4 If Microsoft transfers all or part of its business to a Microsoft Group Company or to a third party (in either case, a “**Transferee**”) the restrictions contained in this clause shall, with effect from the date of you becoming an employee of the Transferee, apply to you as if references to Microsoft included the Transferee and references to any Microsoft Group Company are construed accordingly and as if references to customers or clients or counterparties or suppliers or employees are of Microsoft and/or Transferee and their respective associated companies.

8.5 The obligations imposed on you by this clause extend to you not only on your own account but also if you act on behalf of any other company, entity or other person and shall apply whether you act directly or indirectly.

8.6 The restrictions entered into by you in this clause are given to Microsoft for itself and as trustee for each and any Microsoft Group Company. Any Microsoft Group Company may rely upon and enforce the terms of this clause against you.

8.7 In the event that you breach any of the restrictions in this Contract, the parties agree that you shall be liable to pay Microsoft a sum equivalent to your last monthly remuneration for each month or part of a month that you are in breach of this Contract as compensation for the damages that will be incurred by Microsoft as a result of the breach. Microsoft reserves the right to claim further compensation in the event that the damages incurred are greater than the compensation provided by you under this clause.

E. LEGAL PROVISIONS

1. Confidentiality

1.1 Unless you are required to do so to perform your duties, you must not at any time during your employment or at any time after your employment has terminated:-

- (a) use for your own purposes or those of any other person, company, business entity or other organisation whatsoever; or
- (b) disclose to any person, company, business entity or other organization whatsoever

1.2 Confidential Information relating or belonging to Microsoft or any Microsoft Group Company. Confidential Information is information which is marked “Confidential” (or with a similar expression), any information which you have been told is confidential or which you might

reasonably expect Microsoft would regard as confidential, any information which has been given to Microsoft or any Microsoft Group Company in confidence by customers, partners, suppliers and other third parties and also includes but is not limited to information relating to customers, customer lists or requirements, pricing structures, marketing and sales information, business plans, information regarding employees or officers, financial information, and information regarding products, beta products, research activities and product source code.

2. Intellectual Property

- 2.1 All intellectual property rights (including, without limitation, rights in inventions, patents, registered designs, unregistered designs rights and rights in the nature of unregistered designs, copyright, trade marks, service marks, domain names, trade secrets or know how or similar rights whether arising in Kenya or elsewhere as well as the right to apply for registered protection for any such rights) arising in the course of or as a consequence of work done by you during your employment whether alone or with others (together the "Intellectual Property Rights") shall belong to Microsoft. To the extent these Intellectual Property Rights do not automatically vest in Microsoft, you shall hold them on trust for Microsoft and will (at Microsoft's expense) sign such documents as are necessary to vest them in Microsoft absolutely. Microsoft shall own all documents, drawings, models, samples, prototypes, software and the like prepared by you and which relate to the Intellectual Property Rights.
- 2.2 You shall immediately provide to Microsoft full details of any inventions, discoveries, designs, or other materials made, devised, written or discovered by you during your employment whether alone or with others (including software and documents), and shall not disclose them to any third party without Microsoft's prior written consent.
- 2.3 You shall during the course of your employment with Microsoft keep and store such notebooks and papers relating to your duties or projects upon which you are working in such form and in such manner as Microsoft may from time to time specify.
- 2.4 You hereby assign (in so far as title does not automatically vest in Microsoft as a consequence of your employment) to Microsoft, by way of future assignment, all Intellectual Property Rights.
- 2.5 You hereby waive all moral rights or rights in the nature of moral rights insofar as any such exist in any work or material created by you during the course of your employment and in which Microsoft is the owner by virtue of the operation of clauses 2.1 to 2.5 inclusive of Section E. You acknowledge that, except as provided by law, no further remuneration or compensation other than that provided for in this Contract is or may become due to you in respect of his compliance with this clause.

3. Software Copyright Policy

All software used for or on behalf of the Company shall be correctly and appropriately licensed and used only in conformity with the terms of the license, improper use could lead into disciplinary action.

4. Data Protection Consent

- 4.1 Microsoft and any Microsoft Group Company shall process your personal data (including, where necessary, sensitive personal data. By signing this Contract you consent to the processing of such data both inside and, where necessary, outside Microsoft for the purposes of:
 - (a) Salary, benefits and insurance administration and employee management;

- (b) Health administration and for the purposes of health insurance/benefits;
 - (c) Training and appraisal, including performance records and disciplinary records;
 - (d) Equal opportunities monitoring;
 - (e) Any potential change of control of Microsoft or any Microsoft Group Company, or any potential transfer of your employment (in such circumstances, processing may include disclosure to the potential purchaser or investor and their advisors);
 - (f) Promoting or marketing of Microsoft or any Microsoft Group Company, its or their products or services;
 - (g) Compliance with applicable procedures, laws and regulations; and
 - (h) Any other reasonable purposes in connection with your employment, about which you may be notified from time to time.
- 4.2 You acknowledge and accept that in order to fulfil the purposes set out above, it may be necessary to pass your personal data (and/ or sensitive personal data, as appropriate) to regulatory bodies, government agencies and other third parties as required by law or for administration purposes.
- 4.3 You agree to use all reasonable endeavours to keep Microsoft informed of any changes to your personal data and sensitive personal data such as change of address and/or telephone number, next of kin, bank details, dependants, marital status, gain of qualifications, criminal convictions, etc., and to comply with the provisions of the Data Protection Act and all relevant data protection legislation.
- 4.4 You acknowledge and agree that Microsoft's IT and communications system (including fax, telephone, emails, and internet access and use) are Company property, personal use of which should be minimal. You further consent to Microsoft accessing and monitoring your use of its IT and communications system during your employment in so far as such access and monitoring is required in line with its legitimate business interests and in order to protect its business.
- 4.5 To ensure regulatory compliance and for the protection of its employees, clients/customers and business, Microsoft reserves the right to use surveillance equipment and to monitor, intercept, review and access your telephone log, internet usage, voicemail, e-mail, and other communication facilities provided by Microsoft which you may use during your employment. Microsoft will use this right of access reasonably, but it is important that you are aware that all communications and activities on Company equipment or premises cannot be presumed to be private.
- 4.6 Microsoft does not permit employees to covertly tape or record electronically by any means any individual with whom they interact in the course of their duties. Any employee who does so (without Microsoft's authority) in breach of this clause will be subject to disciplinary action and Microsoft will regard their actions as gross misconduct.
- 5. Entire Agreement and Variation**
- 5.1 This Contract (as supplemented by the Employee Handbook) constitutes the entire agreement between you and Microsoft and, where appropriate, takes the place of all previous (whether oral or written) terms and conditions of employment between you and Microsoft. It is specifically

agreed that the policies set out in the Employee Handbook do not create a contractual entitlement unless otherwise specified.

Microsoft reserves the right to make reasonable changes to any of your terms and conditions of employment. All changes will be notified to you in writing and will not be effective unless approved or endorsed by you and the HR department.

6. **Severability**

- 6.1 The various provisions of this Contract are severable and if any of them or any part or parts of them are held to be invalid or unenforceable by any court of competent jurisdiction, then the provisions and parts shall apply with such deletion or deletions as may be necessary to make the provisions and parts valid and effective and the other provisions of the Contract shall not be affected.

7. **Governing Law**

- 7.1 Your contract of employment with Microsoft (of which this Contract forms part) shall be governed by and construed in all respects in accordance with the laws of Kenya. You irrevocably submit to the exclusive jurisdiction of the Courts of Kenya

8. **Notices**

- 8.1 Any notice to be given under this agreement shall be given in writing and may be sent addressed in the case of the Company to its principal place of business for the time being and in your case to your last known place of residence or given personally and any notice given by post shall be deemed to have been served at the expiration of seven (7) working days after the same was posted.

9. **Third Parties**

- 9.1 Any company in the Microsoft Group may enforce this Contract. No other person who is not a party to this Contract may enforce any of its terms.

10. **Meanings and Interpretation**

- 10.1 In this Contract:

Commencement Date means the first day of your employment with **Microsoft Research & Development Ltd** ;

Employee Handbook means the employee handbook, as identified and located on HR web;

Microsoft Group means Microsoft, and any other company that owns, is owned by or is under common ownership with Microsoft and "**Microsoft Group Company**" means any of the companies within Microsoft Group;

Employment Act means the Employment Act No. 11 of 2007 (as amended).

- 10.2 A reference to a statute or statutory provision includes:
- (a) any subordinate legislation made under it; and
 - (b) any statute or statutory provision which modifies, consolidates, re-enacts or supersedes it;
- 10.3 Clause headings are inserted for convenience only and will not affect the construction of this Contract.
- 10.4 Where the number of a clause heading or a clause is referred to, the reference shall refer to all sub- clauses, paragraphs and sections contained within that numbered clause, paragraph or section.

ACCEPTANCE

To confirm your acceptance of Microsoft's offer of employment and the terms and conditions set out in this Contract, please sign the duplicate copy of this letter where shown, indicating your proposed Commencement Date, which must be a Monday and please return it in the envelope provided.

This offer expires at 5.30 p.m. (East African Time) on **15th Oct 2021**, after which the offer shall lapse. Any extension to this will require the formal written agreement of Microsoft.

We very much look forward to your joining and wish you a long and successful association with Microsoft and the Microsoft Group.

Yours sincerely



Jack Ngare
Principal Group Manager

For and on behalf of Microsoft

To:

Jack Ngare
Principal Group Manager

ACCEPTANCE

I Charles Kabui accept Microsoft's offer of employment and the terms and conditions of employment as detailed in the Contract to which this acceptance is attached.

I confirm that I have read the Contract and agree to the terms and conditions set out in it. I acknowledge and agree that the terms and conditions of my employment may be supplemented by policies and procedures which may be introduced by Microsoft from time to time and by certain terms of the Employee Handbook.

I agree that I will commence my employment with Microsoft Research & Development Limited on 1st November 2021, whilst retaining my initial start date with Microsoft East Africa on ~~Monday, April 19, 2021~~

Signature Charles Kabui
Charles Kabui (Sep 24, 2021 17:41 GMT+3).....

Date ~~24-Sep-2021~~.....

THE SECOND SCHEDULE**PERSONAL PARTICULARS**

(Pursuant to Section 10(2) of the Kenyan Employment Act)

1.	Name:	Charles Njogu Kabui
2.	Date of Birth:	29-Jul-1992
3.	Sex:	Male
4.	Marital Status:	Married
5.	No. of children (if any) and date of birth:	
6.	Permanent Address:	
7.	Postal Address:	
8.	Telephone Contacts:	+254707115007
9.	Next of kin:	Achieng Cindy Muga
10.	Next of kin's telephone contacts:	+254700158575